THE BURTON INN LEASE

Two-Tier Value-Sharing Lease© — 24007 Vashon Highway SW, Vashon (Burton), Washington 98070

Draft v0.14 — November 13, 2026 — five-year term; purchase price set by appraisal and a Year 3 value review

> *Section 1/3, including its Exhibits, incorporates Sections 2/3 and 3/3 (Version 2.1, September 19, 2026), which are attached and apply unchanged. Section 1/3 governs Sections 2/3 and 3/3 if any conflict arises. Capitalized terms have the meanings assigned in Section 3/3 unless specifically defined here.*

THE DEAL IN BRIEF *(a summary only; the Articles and Exhibits below control)*

- **What is leased:** the whole Burton Inn building and grounds, to a single tenant.
- **How long:** five years, through December 31, 2031. Years 1–3 establish the business; Years 4–5 are for completing the purchase.
- **Tier One (property costs):** Tenant pays the property's taxes, insurance, and routine upkeep at actual cost (about $19,500 a year today), and all utilities directly. Landlord's costs of owning the building are covered.
- **Tier Two (Landlord's return):** Landlord receives ten percent (10%) of the inn's gross revenue, with a guaranteed minimum of $1,650 a month starting January 1, 2028. Landlord's return rises and falls with the business.
- **Option to buy:** Tenant may buy the inn, or the inn and the Yellow House together. The price is set by an independent appraisal at signing and a value review after Lease Year 3 (Exhibit I).
- **Improvements:** Tenant funds about $98,000 of fit-out, which stays with the building. Landlord installs fire suppression and HVAC (about $50,000).

SECTION 1/3 — TENANT SPECIFIC TERMS & EXHIBITS

ARTICLE 1 | PARTIES

1.01 Landlord. The Burton Landing LLC, a Washington limited liability company.

1.02 Tenant. eBerry LLC, a Washington limited liability company, 9405 SW Gorsuch Road, Vashon, Washington 98070.

1.03 Guarantor. Intentionally omitted.

1.04 Brokers. None. Each party's representation and indemnity are set forth in Section 2/3 Article 17.03.

1.05 Good Faith Deposit. Intentionally omitted. (The $70,000 rent advance is addressed in Article 4.09.)

ARTICLE 2 | PREMISES

2.01 Building. The Burton Inn, 24007 Vashon Highway SW, Vashon (Burton), Washington 98070, on the land described in Exhibit A, as shown on the site plan in Exhibit B.

2.02 Tenant Premises. The entire Building, together with the land, parking, and grounds, leased to a single tenant.

2.03 Tenant Proportionate Share. 100% (whole Building). Exhibit C is not used.

2.04 Common Areas and Parking. None. All parking, grounds, and outdoor areas are part of the Premises and are under Tenant's control (see Exhibit H, Section 1). Alley access is addressed in Exhibit J.

2.05 Delivery Condition. As-Is under Section 2/3 Article 2.03, on the Lease Start Date, except for Landlord's Work described in Exhibit E.

2.06 Tenant Improvements. Tenant will fund and perform a fit-out of about Ninety-Eight Thousand Dollars ($98,000): flooring; interior paint and exterior touch-up; a commercial kitchen retrofit with all required permits; and guest-room, bar, and dining furnishings. Phase 1 is the guest rooms, related public areas, and life-safety items; Phase 2 (about three months later) is the kitchen, bar, and event spaces. This work is approved by Landlord under Section 2/3 Article 4.04. The amounts are estimates; the obligation is to complete the work lien-free, not to spend a particular amount. Work attached to the Building stays with the Building at the end of the Term under Section 2/3 Article 4.06; Tenant's Trade Fixtures, equipment, and inventory remain Tenant's property.

ARTICLE 3 | TERM

3.01 Lease Start Date. The date both parties have signed this Lease. Landlord delivers possession on that date.

3.02 Rent Commencement Date. The Lease Start Date. Base Rent Tier Two (the percentage of Gross Revenue) accrues from that date; the monthly minimum begins January 1, 2028 (Article 4.03).

3.03 Base Rent Tier One Commencement Date. The first day of the month after the Lease Start Date.

3.04 Initial Term. From the Lease Start Date through the Lease Expiration Date.

3.05 Lease Expiration Date. December 31, 2031 (the end of Lease Year 5), unless extended under Article 3.06 or sooner terminated under the Lease.

3.06 Extension Option. [To be agreed. Proposed: if the purchase under Exhibit I has not closed by the Lease Expiration Date and no Event of Default exists, Tenant may extend the Term once, for up to two (2) years, by written notice to Landlord at least nine (9) months before the Lease Expiration Date. All terms stay the same during the extension, including the $1,650 monthly minimum, the ten percent (10%) rate, and the Purchase Price set under Exhibit I.]

3.07 Lease Years. Lease Year 1 runs from the Lease Start Date through December 31, 2027. Each later Lease Year is a calendar year (January 1 through December 31). Lease Years are fixed and do not move if opening is delayed.

ARTICLE 4 | RENT AND FINANCIAL OBLIGATIONS

4.01 Lease Type. Two-Tier Value-Sharing Lease, Triple Net (NNN). Base Rent Tier One covers the property's operating costs (Article 4.02). Base Rent Tier Two is the Landlord Investment, paid as a share of Gross Revenue with a monthly minimum (Article 4.03). Together they constitute Base Rent; every other amount payable by Tenant is Additional Rent.

4.02 Base Rent Tier One (Operational Costs). Tenant pays, at actual cost and without markup or management fee, the property taxes and assessments on the Premises, Landlord's building insurance premiums, and routine maintenance and upkeep, as set out in Exhibit H, Section 2. There is no Escrow Account. Current estimate: about $19,500 per year (about $1,625 per month), per the Annual Budget attached as Exhibit D. Tenant's audit rights are set forth in Section 2/3 Article 1.07.

4.03 Base Rent Tier Two (Landlord Investment). For each Lease Year, Landlord receives the greater of (a) the Minimum Tier Two Rent or (b) ten percent (10%) of Gross Revenue. Mechanics, the definition of Gross Revenue, and reporting are in Exhibit H, Sections 3 through 5.

- Lease Year 1 (Lease Start Date through December 31, 2027): no minimum; ten percent (10%) of Gross Revenue.
- From Lease Year 2 (January 1, 2028 onward): Minimum Tier Two Rent of $1,650.00 per month ($19,800 per year), plus any amount by which ten percent (10%) of Gross Revenue for the Lease Year exceeds the minimum.
- Examples for a full Lease Year: Gross Revenue of $150,000 means Tier Two of $19,800 (the minimum); $270,000 means $27,000; $450,000 means $45,000.

Escalation: None. The minimum and the ten percent (10%) rate are fixed for the Term, including any extension; Landlord's return grows as the business grows.

4.04 Rent Payment. The Minimum Tier Two Rent is paid monthly under Section 2/3 Article 1.01. The percentage portion of Tier Two is paid quarterly, by the last day of the month after each calendar quarter (April 30, July 31, October 31, and January 31), with a year-end true-up, as set out in Exhibit H, Section 3. Tier One items are paid as billed under Exhibit H, Section 2. Partial months are prorated by days.

4.05 Security Deposit. None ($0).

4.06 Late Charges and Interest. Under Section 2/3 Article 1.02: a late charge of five percent (5%) or Fifty Dollars ($50.00), whichever is greater, on any Rent not received within five (5) days after it is due, and interest at twelve percent (12%) per annum on any Rent more than thirty (30) days past due.

4.07 Utilities and Services. Tenant puts all utilities in its own name and pays them directly under Section 2/3 Article 5.01, including electricity, propane or natural gas, water, trash and recycling, telephone, and internet. Section 2/3 Article 5.02 does not apply. The shared septic system is addressed in Exhibit J.

4.08 NNN Variation. Elected. Under Section 2/3 Article 1.05, Exhibit H, Sections 1 and 2 modify Section 2/3 Article 1 as stated there.

4.09 Rent Advance. Tenant paid Landlord $70,000 as a rent advance under the Side Agreement (Article 8.01). It is credited and, where applicable, refunded as the Side Agreement provides (see Exhibit H, Section 15).

ARTICLE 5 | USE OF PREMISES

5.01 Permitted Use. Lodging (up to four (4) guest rooms, or such number as King County allows); a restaurant and bar serving beer, wine, and spirits; ticketed dinners, tastings, and events; pop-up and takeaway food service; rental of the commercial kitchen to licensed food businesses; private events; and related retail — in each case only as allowed by King County zoning, the certificate of occupancy, and applicable permits. If the County requires the lodging to operate as a bed-and-breakfast accessory to an operator's residence, Tenant may designate part of the Premises as that residence, and that residential use is a Permitted Use (Exhibit H, Section 9).

5.02 Hazardous Materials. None beyond ordinary cleaning, maintenance, kitchen, and bar supplies customarily used in an inn and restaurant, kept and used under Section 2/3 Article 3.04.

5.03 Insurance. The coverages and limits in Section 2/3 Article 6.01, plus the additional coverages in Exhibit H, Section 10. Additional insureds under Section 2/3 Article 6.02. Tenant shall deliver certificates before the Lease Start Date and at each renewal.

5.04 Signage. Tenant may keep and refresh the existing Burton Inn signage and install new exterior signs with required permits, as modified in Exhibit H, Section 13.

5.05 Site Rules. Section 2/3 Article 19 applies, as modified in Exhibit H, Section 13.

5.06 Access. Tenant shall have access to the Premises twenty-four (24) hours a day, seven (7) days a week. Landlord's entry is governed by Section 2/3 Article 11.01, as modified in Exhibit H, Section 12.

5.07 Zoning and Opening. If guest rooms cannot legally reopen by June 30, 2027, Tenant may end this Lease as provided in Exhibit H, Section 9.

ARTICLE 6 | NOTICES AND PAYMENT

6.01 Notices. Notices shall be in writing and delivered under Section 2/3 Article 15 to the addresses below. Either party may change its address by written notice.

6.02 Notice to Landlord. The Burton Landing LLC, 24007 Vashon Highway SW, Vashon, Washington 98070.

6.03 Notice to Tenant. eBerry LLC, 9405 SW Gorsuch Road, Vashon, Washington 98070.

6.04 Rent Payment Address. By ACH to the account designated by Landlord in writing, or by check payable to Landlord at the address Landlord specifies.

ARTICLE 7 | SPECIAL PROVISIONS

7.01 Special Provisions. The following provisions apply in addition to, and control over, Sections 2/3 and 3/3. Each cites the Article of Section 2/3 it modifies. As set out in Exhibit H, Addendum:

- **(1) Whole Property** (modifies Section 2/3 Articles 1.03 through 1.06, 12, and 20.02).
- **(2) Triple-Net Costs — Base Rent Tier One** (modifies Section 2/3 Articles 1.03 through 1.06, 5.02, and 6.01).
- **(3) How Tier Two Is Paid** (modifies Section 2/3 Article 1.01).
- **(4) Gross Revenue** (new).

- **(5) Reports and Landlord's Audit** (new; Section 2/3 Article 1.07 continues to apply to Tier One).
- **(6) Operating** (new).
- **(7) Maintenance, Repairs, and Replacements** (modifies Section 2/3 Articles 1.03(e), 4.01, 4.02, and 4.03).
- **(8) Tenant's Fit-Out** (modifies Section 2/3 Article 4.04).
- **(9) Zoning, Permits, and Opening** (modifies Section 2/3 Article 3.01).
- **(10) Insurance** (modifies Section 2/3 Article 6.01).
- **(11) Guests, Events, and Kitchen Users** (modifies Section 2/3 Articles 8.01 through 8.03).
- **(12) Landlord's Entry** (modifies Section 2/3 Article 11.01).
- **(13) Site Rules and Signage** (modifies Section 2/3 Articles 19.04, 19.06, and 20.01).
- **(14) Casualty and Holding Over** (modifies Section 2/3 Articles 7.01, 7.02, and 13.01).
- **(15) Rent Advance** (new).
- **(16) Default Damages** (modifies Section 2/3 Article 9.04).
- **(17) Lender, Notary, and Recording** (modifies Section 2/3 Articles 10.01 and 18.09).

7.02 Option to Purchase. Landlord grants Tenant the Option to Purchase in Exhibit I.

7.03 Shared Septic, Alley, and Yellow House. As set out in Exhibit J.

ARTICLE 8 | INCORPORATION AND EXHIBITS

8.01 Entire Agreement. This Section 1/3, its Exhibits, and Sections 2/3 and 3/3, Version 2.1, September 19, 2026, constitute the entire Lease and supersede all prior negotiations, letters of intent, and proposals, including the July 2026 prospectus — **except the Side Agreement dated [_____], 2026 between Landlord and Tenant (the "Side Agreement"), which remains in effect.** If this Lease and the Side Agreement conflict about the $70,000 rent advance, the Side Agreement controls; on everything else, this Lease controls. Precedence: (1) this Section 1/3 with its Exhibits; (2) Section 2/3; (3) Section 3/3. Any amendment must be in a written instrument signed by both parties.

8.02 Exhibit A. Legal Description.

8.03 Exhibit B. Site Plan of the Premises.

8.04 Exhibit C. Unit Allocations (Intentionally omitted — whole Building, 100%).

8.05 Exhibit D. Annual Budget (Base Rent Tier One estimate).

8.06 Exhibit E. Landlord Work Letter.

8.07 Exhibit F. Unconditional Guaranty of Lease (Intentionally omitted).

8.08 Exhibit G. Additional Site Rules (Intentionally omitted).

8.09 Exhibit H. Addendum (modifies the Section 2/3 Articles listed in Article 7.01).

8.10 Exhibit I. Option to Purchase.

8.11 Exhibit J. Shared Septic, Alley, and Yellow House.

ARTICLE 9 | EXECUTION

9.01 Execution. By signing below, Landlord and Tenant agree to this Lease, comprising this Section 1/3 with its Exhibits and Sections 2/3 and 3/3, Version 2.1, September 19, 2026. Because the Term exceeds two (2) years, the parties will sign before a notary, and notary acknowledgments will be attached (see Exhibit H, Section 17).

LANDLORD: The Burton Landing LLC, a Washington limited liability company

SIGNATURE: /sn1/

PRINTED NAME / TITLE: _____

DATE: /ds1/

TENANT: eBerry LLC, a Washington limited liability company

SIGNATURE: /sn2/

PRINTED NAME / TITLE: _____

DATE: /ds2/

End of Section 1/3 — Specific Lease Terms

EXHIBIT A: LEGAL DESCRIPTION AND KING COUNTY TAX PARCEL NUMBER

The Premises are legally described as follows (abbreviated legal description, King County records):

S 100 FT OF N 130 FT OF W 150 FT OF E 180 FT OF GOVT LOT 2 IN NE QTR STR 19-22-03

(That is: the south 100 feet of the north 130 feet of the west 150 feet of the east 180 feet of Government Lot 2 in the northeast quarter of Section 19, Township 22 North, Range 3 East, W.M., King County, Washington.) King County Tax Parcel No. [_____]. If the full legal description in Landlord's vesting deed differs, the vesting deed controls.

EXHIBIT B: SITE PLAN

[Site plan of the Building, grounds, parking, and alley to be attached.]

EXHIBIT C: UNIT ALLOCATIONS

Intentionally omitted. The Premises are the whole Building; Tenant's Proportionate Share is 100%.

EXHIBIT D: ANNUAL BUDGET (BASE RENT TIER ONE ESTIMATE)

Tenant's good-faith estimate of the Tier One costs it will pay at actual cost under Exhibit H, Section 2. These are estimates, not caps; Tenant pays the actual bills.

- Property taxes and assessments: about $8,500 per year.
- Landlord's building insurance: about $6,500 per year.
- Routine maintenance and upkeep: about $375 per month ($4,500 per year).
- **Total: about $19,500 per year (about $1,625 per month).**

Utilities are paid directly by Tenant (Article 4.07) and are not part of this budget.

EXHIBIT E: LANDLORD WORK LETTER

At Landlord's own cost, and not passed through to Tenant as Tier One or otherwise:

- **E.1 Fire suppression and HVAC.** Landlord completes the fire suppression system required by code for the Permitted Use and the HVAC serving the Premises (about $50,000 combined; work under way on the Lease Start Date), in time for each phase of Tenant's opening, subject to Force Majeure and Tenant's cooperation.
- **E.2 Existing code violations.** Landlord resolves any code violation existing on the Lease Start Date, including the open violation on the sunroom, either by correcting it or by closing off the affected area.
- **E.3 Punch list.** Section 2/3 Articles 2.04 and 2.05 apply to Landlord's Work.

EXHIBIT F: UNCONDITIONAL GUARANTY OF LEASE

Intentionally omitted.

EXHIBIT G: ADDITIONAL SITE RULES

Intentionally omitted.

EXHIBIT H: ADDENDUM

This Addendum is part of Section 1/3 and controls over Sections 2/3 and 3/3 where they differ.

1. Whole Property (modifies Section 2/3 Articles 1.03 through 1.06, 12, and 20.02). The Premises are the entire Building and grounds, leased to one tenant. There are no Common Areas and no CAM Charges. Article 12 (Relocation of Tenant) does not apply. In place of Article 20.02, Tenant controls the parking on the Premises for its employees, guests, and suppliers.

2. Triple-Net Costs — Base Rent Tier One (modifies Section 2/3 Articles 1.03 through 1.06, 5.02, and 6.01). Base Rent Tier One consists only of the following, paid at actual cost from the Base Rent Tier One Commencement Date: (a) property taxes and assessments on the Premises for periods within the Term; (b) Landlord's building insurance premiums (special-form property coverage at replacement cost, plus liability coverage for Landlord's ownership); and (c) routine maintenance and upkeep, which Tenant performs or contracts for directly under Section 7 of this Addendum. Landlord sends each tax and insurance bill when received; Tenant pays taxes at least thirty (30) days before they are delinquent and insurance within thirty (30) days after invoice. There is no management fee, no Escrow Account, no contingency or reserve, and no capital improvement charge. Tenant pays all utilities directly (Article 4.07).

3. How Tier Two Is Paid (modifies Section 2/3 Article 1.01).

- **(a) The rule.** For each Lease Year, Tier Two is the greater of the Minimum Tier Two Rent or ten percent (10%) of Gross Revenue.
- **(b) Monthly minimum.** Beginning January 1, 2028, Tenant pays the $1,650 Minimum Tier Two Rent in advance on the first day of each month. There is no minimum in Lease Year 1.
- **(c) Quarterly payments.** By the last day of the month after each calendar quarter — April 30, July 31, October 31, and January 31 — Tenant pays ten percent (10%) of Gross Revenue for the Lease Year to date, less all Tier Two already paid for that Lease Year, if the result is more than zero.
- **(d) Year-end true-up.** By March 31 after each Lease Year, Tenant delivers an annual Gross Revenue statement certified by an officer or manager of Tenant, with payment of any shortfall. Any overpayment is credited against the next Rent due, or refunded within thirty (30) days after the Lease ends.
- **(e) Partial final year.** If the Lease ends on a day other than December 31, the minimum for that final Lease Year is prorated by days.

4. Gross Revenue (new). "Gross Revenue" means all revenue from business conducted at or from the Premises — whether received in cash, by card, electronically, or through booking platforms, ticketing services, or other intermediaries (without deducting their fees) — including lodging, food and beverage, tickets, pop-up and takeaway sales, commissary and kitchen rental, venue and private-event fees, and merchandise. It is measured from receipts, with no expense deductions. It does not include: sales, lodging, liquor, and similar taxes collected and paid to the government; refunds, credits, and voided transactions; tips paid over to employees; insurance or condemnation

proceeds; deposits until applied or forfeited; or proceeds from selling used furniture, fixtures, or equipment.

5. Reports and Landlord's Audit (new; Section 2/3 Article 1.07 continues to apply to Tier One). Within twenty (20) days after each month, Tenant sends Landlord that month's Gross Revenue (a point-of-sale report is sufficient). Tenant keeps its point-of-sale and booking records for three (3) years. Once per Lease Year, on fifteen (15) days' notice, Landlord or its accountant may audit those records for the two (2) prior Lease Years. Tenant pays any shortfall found, with interest at the Section 2/3 Article 1.02 rate, within thirty (30) days; if Gross Revenue was understated by more than ten percent (10%) for a Lease Year, Tenant also pays Landlord's reasonable audit cost. Records and audit results are confidential under Section 2/3 Article 18.08.

6. Operating (new). Once guest rooms have reopened, Tenant will keep the business operating in the ordinary course, except for closures for fit-out, casualty, condemnation, repairs, permits, or Force Majeure, and seasonal closures of up to six (6) weeks per Lease Year in total. No minimum revenue is required; if revenue falls, Tier Two falls with it, down to the minimum.

7. Maintenance, Repairs, and Replacements (modifies Section 2/3 Articles 1.03(e), 4.01, 4.02, and 4.03). Tenant maintains the entire Premises — interior, exterior, grounds, parking, and building systems — in clean, safe, working condition, including routine HVAC servicing by a licensed contractor. At Landlord's own cost, not passed through to Tenant: (a) Landlord maintains and repairs the roof, foundation, and structure; (b) Landlord performs the Landlord's Work in Exhibit E; and (c) Landlord replaces the fire suppression system and the HVAC when needed, unless the replacement is caused by Tenant's misuse. Septic costs are as stated in Exhibit J.

8. Tenant's Fit-Out (modifies Section 2/3 Article 4.04). The Tenant Improvements described in Article 2.06 are approved. Later Alterations follow Article 4.04.

9. Zoning, Permits, and Opening (modifies Section 2/3 Article 3.01).

- **(a) Cooperation.** Landlord will reasonably cooperate, at no material cost to Landlord, with Tenant's zoning, permit, and license applications, including signing owner consents.
- **(b) Operator's residence.** If the County requires the lodging to operate as a bed-and-breakfast accessory to an operator's residence, Tenant may designate part of the Premises as the residence of its operator, and that residential use is a Permitted Use.
- **(c) If guest rooms cannot reopen.** If guest rooms cannot legally reopen by June 30, 2027, for reasons other than Tenant's failure to pursue its applications diligently, Tenant may end this Lease by thirty (30) days' written notice given before the guest rooms are approved. On that termination, each party is released from future obligations; Tenant pays Rent accrued to the termination date and removes its Trade Fixtures; Tenant's fit-out stays with the Building; and the rent advance is handled as the Side Agreement provides.
- **(d) Phased opening.** Delays in opening do not move the Lease Years or the start of the monthly minimum.

10. Insurance (modifies Section 2/3 Article 6.01). In addition to Article 6.01, Tenant carries **liquor liability insurance** of at least $1,000,000 per occurrence from the first day alcohol is served, and **business-income insurance** covering at least twelve (12) months of Rent. Landlord's building insurance is a Tier One cost under Section 2 of this Addendum.

11. Guests, Events, and Kitchen Users (modifies Section 2/3 Articles 8.01 through 8.03). Overnight guests, event and venue hires, ticketed dinners, visiting chefs and pop-up vendors, and short-term commissary-kitchen users are ordinary parts of the business, not assignments or subleases, and need no consent. Tenant remains responsible for them, and the revenue they generate is Gross Revenue. Article 8.02 (Recapture) does not apply. Article 8.03 (Excess Rent) applies only to a sublease of all or substantially all of the Premises.

12. Landlord's Entry (modifies Section 2/3 Article 11.01). Landlord will coordinate entry with Tenant's manager and will not enter an occupied guest room except in an emergency.

13. Site Rules and Signage (modifies Section 2/3 Articles 19.04, 19.06, and 20.01). The ordinary sounds and cooking odors of a lawfully operated inn, restaurant, bar, and event venue do not violate Article 19.04, subject to any operating standards in Exhibit J. Tenant may allow guests' pets under a written house policy, and Tenant's own animals with Landlord's consent, not unreasonably withheld. Under Article 20.01, Landlord consents to the existing Burton Inn signage and its refresh, and will not unreasonably withhold consent to new signs that have the required permits.

14. Casualty and Holding Over (modifies Section 2/3 Articles 7.01, 7.02, and 13.01). During any abatement under Article 7.01 or 7.02, the monthly minimum abates in the same proportion, and ten percent (10%) continues to apply to whatever Gross Revenue is earned. For Article 13.01, the monthly Base Rent Tier Two "in effect" is the greater of the monthly minimum or one-twelfth of the Tier Two paid for the twelve (12) months before expiration.

15. Rent Advance (new). Tenant paid Landlord $70,000 as a rent advance under the Side Agreement. It is credited against Rent, and the stated portion is refundable, as the Side Agreement provides. [To be confirmed: how the refund applies under a five-year Term.] If Tenant buys the property under Exhibit I, any part of the advance not yet credited or refunded is credited toward the Purchase Price.

16. Default Damages (modifies Section 2/3 Article 9.04). In calculating damages, Base Rent Tier Two for future periods is deemed to equal the average annual Tier Two paid for the thirty-six (36) months before the default (or the actual period, if shorter), but not less than the minimum.

17. Lender, Notary, and Recording (modifies Section 2/3 Articles 10.01 and 18.09). As a condition of subordinating this Lease to any future mortgage, the lender must sign a commercially reasonable non-disturbance agreement recognizing this Lease, including the rent structure and the Option to Purchase, so long as no Event of Default exists. Because the Term exceeds two (2) years, the parties will sign this Lease before a notary. Notwithstanding Article 18.09, either party may record a memorandum of this Lease and of the Option to Purchase (omitting economic terms) at its own cost.

EXHIBIT I: OPTION TO PURCHASE

Bracketed items are to be agreed before signing.

I.1 The Option. Landlord grants Tenant the option to buy the property — the land, the Building, and Landlord's fixtures and improvements — on the terms of this Exhibit (the "Option").

I.2 Today's Value. Before or promptly after the Lease Start Date, an independent appraiser accepted by both parties [name; cost shared equally] will appraise the property in its condition on the Lease Start Date, before Tenant's fit-out (the "Baseline Value").

I.3 Value Review. By April 30, 2030, after Tenant delivers its annual statement for Lease Year 3, the parties will meet and set the Purchase Price as follows:

- **(a) Adjusted Baseline.** The Baseline Value, adjusted for inflation from the Lease Start Date to December 31, 2029 [by the Consumer Price Index for the Seattle area].
- **(b) Rent-Based Value.** The average annual Base Rent Tier Two paid for Lease Years 2 and 3, divided by [____] percent.
- **(c) Purchase Price.** The Adjusted Baseline, plus one-half of any amount by which the Rent-Based Value exceeds the Adjusted Baseline. The amount added under this paragraph will not exceed [ten percent (10%)] of the Adjusted Baseline.
- **(d) Tenant's fit-out.** No amount is added for Tenant's Improvements or Alterations.

I.4 Yellow House. If Landlord owns the neighboring Yellow House parcel when Tenant exercises the Option, Tenant may elect to buy it together with the property. Its price is its appraised value on the Lease Start Date, set by the same appraiser and adjusted for inflation as in Section I.3(a). No Rent-Based Value applies to it.

I.5 Exercise and Closing. Tenant may exercise the Option by written notice to Landlord at any time after the Purchase Price is set and on or before [June 30, 2031], as long as no Event of Default exists. Closing takes place by December 31, 2031, or by the end of any extension under Article 3.06. The Purchase Price does not change after it is set. [Earnest money, title, closing costs, and any seller financing: to be agreed.]

I.6 Protecting the Option. The Option binds Landlord's successors and any buyer of the property. Any right of first refusal Landlord grants to an owner of the Yellow House (Exhibit J) must exclude a sale to Tenant under this Option.

EXHIBIT J: SHARED SEPTIC, ALLEY, AND YELLOW HOUSE

To be completed before signing. The principles below apply; bracketed items need the parties' details.

J.1 Shared Septic. The Premises share a septic system with the neighboring Yellow House property [describe location and any recorded easement or septic agreement]. Tenant may use the system as needed for the Permitted Use, within its permitted capacity. Routine pumping and maintenance costs are shared [___% Premises / ___% Yellow House], and Tenant pays the Premises' share as a Tier One cost. Repair and replacement of the system are Landlord's responsibility [, shared with the Yellow House owner as their agreement provides].

J.2 Mutual Right of First Refusal. If the Yellow House is sold to someone other than Tenant, Landlord may enter into a mutual right of first refusal with its owner, because of the shared septic system. That agreement is between the property owners and is not part of this Lease, and it must

exclude a sale to Tenant under Exhibit I.

J.3 Alley Access. Tenant and its employees, guests, and suppliers may use the alley [describe] for access, deliveries, and parking as it has historically been used. [Describe any easement and who maintains the alley.]

J.4 Yellow House. [Describe any agreed operating standards for the benefit of the Yellow House residence — for example, quiet hours, limits on outdoor events, and exterior lighting.] Landlord's arrangements with the Yellow House owner will not interfere with Tenant's quiet enjoyment of the Premises.

End of Section 1/3 and Exhibits for The Burton Inn — Draft v0.14, November 13, 2026. To be read with the attached Sections 2/3 and 3/3 of the Two-Tier Value-Sharing Lease© (Version 2.1, September 19, 2026).

SECTION 2/3 — STANDARD LEASE TERMS

TWO-TIER VALUE-SHARING LEASE©

Version 2.1, September 19, 2026

Section 2/3 contains the standard legal provisions for a Two-Tier Value-Sharing Lease©. Capitalized terms used in this Section have the meanings assigned in Sections 1/3 and 3/3. Landlord may revise Sections 2/3 and 3/3 from time to time for clarity. The version of Sections 2/3 and 3/3 identified in Tenant's executed Section 1/3 governs that lease, and a later revision applies to this Lease only if Tenant approves it in writing.

ARTICLE 1 | RENT AND FINANCIAL OBLIGATIONS

1.01 Payment of Base Rent. Tenant shall pay Base Rent Tier One (Operational Costs) and Base Rent Tier Two (Landlord Investment) monthly in advance on or before the first day of each month during the Term. Rent shall be paid via check or electronic funds transfer (ACH) to an account designated by Landlord. Tenants shall pay all Rent without any prior demand, deduction, set off, or counterclaim. Landlord may designate a successor payment address or account upon written notice.

1.02 Late Charges and Interest. If Rent is not received by Landlord within five (5) days after its due date, Tenant shall pay a late charge equal to five percent (5%) of the overdue amount or Fifty Dollars ($50.00), whichever is greater. Any Rent that remains unpaid thirty (30) days after its due date shall also bear interest from that thirtieth day until paid at twelve percent (12%) per annum or the maximum rate permitted by Applicable Laws, whichever is less. Late charges and interest are Additional Rent.

1.03 CAM Charges (Common Area Maintenance). Included in Base Rent Tier One, allocated based on each Tenant's Proportionate Share as reasonably determined by Landlord in operating, managing, maintaining, and repairing all Building and Common Areas ("CAM Charges"). CAM Charges include, but are not limited to, the following:

- **(a) Taxes:** All real property and personal property taxes, assessments, King County surface water management fees, and transit taxes.
- **(b) Insurance:** Premiums for Landlord's commercial general liability, property, earthquake, and loss of rents insurance plus any special insurance due to Tenant's business.
- **(c) Maintenance & Common-Area Utilities:** Costs of Common Area services and utilities that are not separately metered or billed to a tenant, including garbage, landscaping, parking lot maintenance, pest control, recycle, sewer, snow/ice removal, trash, waste connections, water, and gas and electricity serving the Common Areas. Utilities that Tenant pays directly under Section 5.01 are not CAM Charges.
- **(d) Management:** A property management fee of five percent (5%), plus the cost of on-site personnel directly involved in operations.
- **(e) Capital Improvements:** The cost of those capital improvements (a) required by new governmental laws (e.g., energy or building code mandates), (b) reasonably intended to reduce or replace CAM Charges, or (c) made to replace, through no fault of Tenant, HVAC or other Building systems serving the Premises or the Common Areas that have reached the end of their useful life,

as provided in Section 4.02, in each case amortized over their useful life per GAAP, with 8% interest on any unamortized balance.

1.04 Exclusions from CAM Charges. CAM Charges shall not include Landlord marketing expenses, lease commissions, lease-up expenses, political contributions, penalties and fines, legal fees for procuring tenants, Landlord's business income taxes, property debt service, costs related to Landlord's gross negligence, or costs to remediate Hazardous Materials present prior to the Lease Start Date.

1.05 NNN Variation. If Section 1/3 - Specific Lease Terms designates this Lease as also Triple Net (NNN), the provisions set forth in that section shall modify or supersede this Article 1 to the extent set forth therein.

1.06 Estimated Payments and Reconciliation. Prior to the end of each calendar year, Landlord shall provide a good-faith estimated Annual Budget for Base Rent Tier One for the coming year. Tenant shall pay at least 1/12th of its share monthly into an Escrow Account managed by Landlord. Within one hundred twenty (120) days after the end of the calendar year, or as soon thereafter as reasonably practicable, Landlord shall furnish a reconciliation statement. Tenant shall pay any deficiency within thirty (30) days, and Landlord shall credit any overage to future Base Rent Tier One.

1.07 Tenant's Audit Rights. Tenant must submit any audit request within thirty (30) days after receiving the reconciliation statement.

ARTICLE 2 | DELIVERY AND ACCEPTANCE OF PREMISES

2.01 Delivery of Possession. Landlord shall use commercially reasonable efforts to deliver possession of the Premises on or before the Lease Start Date in the condition required by the Lease Terms Sheet.

2.02 Delayed Possession; Tenant's Cancellation Right. If Landlord is unable to deliver possession of the Premises in the required delivery condition within sixty (60) days after the Lease Start Date, then (a) Rent shall abate for the period of the delay until possession is delivered, and (b) Tenant may, at its option, cancel this Lease by written notice to Landlord delivered at any time before possession is tendered. Upon such cancellation, Landlord shall promptly refund to Tenant all prepaid Rent and Security Deposit, and neither party shall have any further obligation to the other, except for obligations that expressly survive termination. This Section 2.02 states Tenant's sole remedy for delayed delivery and is subject to extension for Force Majeure and for delays caused by Tenant.

2.03 Acceptance "As-Is". Except as expressly stated in the Lease Terms Sheet or a Tenant Work Letter, Tenant accepts the Premises in their then-existing condition upon delivery of possession. Tenant acknowledges that it has had an adequate opportunity to inspect the Premises and that Landlord has made no representations or warranties except as expressly stated in this Lease.

2.04 Punch List. If Tenant fails to deliver to Landlord a written list of defects in any Landlord-performed work within thirty (30) days after delivery of possession, Tenant shall be deemed to have accepted the Premises in their then-existing condition. If Tenant timely delivers such a list, Landlord shall correct the listed items that are Landlord's responsibility with reasonable diligence, and the parties shall conduct one inspection-and-cure cycle to confirm completion. Minor defects that do not prevent Tenant from using the Premises for the Permitted Use shall not delay the Rent Commencement Date.

2.05 Completion Delays Do Not Extend Commencement. Except as expressly provided in Section 2.02, the time needed to complete punch-list items or any Tenant Improvements shall not delay the Base Rent Tier One Commencement Date, and any delay attributable to Tenant or Tenant's contractors shall not abate or postpone Rent.

ARTICLE 3 | USE OF PREMISES AND COMPLIANCE WITH LAWS

3.01 Permitted Use. Tenant shall use the Premises solely for the Permitted Use specified in Section 1/3 – Specific Lease Terms and shall operate in a reputable manner. Any change in use requires Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed.

3.02 Prohibited Uses and Federal Carve-Out. Notwithstanding any provision of Washington law, Tenant shall not engage in any activity that violates federal law, including the cultivation, distribution, or sale of cannabis, unless expressly authorized by a separate written addendum executed by Landlord.

3.03 Compliance with Laws and the ADA. Landlord shall remain responsible for ADA compliance relating to Common Areas and structural elements except to the extent caused by Tenant. Tenant assumes responsibility for complying with all Applicable ADA Laws and bears the cost and responsibility for ensuring that the interior of the Premises, Tenant's operations, and any Alterations comply with the ADA and Washington accessibility codes. Tenant indemnifies Landlord against third-party ADA claims arising from Tenant's interior.

3.04 Environmental Compliance (Washington MTCA). Tenant shall strictly comply with the Washington Model Toxics Control Act. Tenant shall not permit Hazardous Materials on the Premises, except for supplies and materials customarily used for the Permitted Use, kept and used in commercially reasonable quantities and in strict compliance with Applicable Laws and manufacturer instructions.

3.05 Environmental Indemnification. Tenant shall indemnify, defend, and hold Landlord harmless from all claims, liabilities, damages, and remediation costs arising from Tenant's use, storage, release, or disposal of Hazardous Materials.

ARTICLE 4 | MAINTENANCE, REPAIRS, AND ALTERATIONS

4.01 Tenant's Maintenance Obligations. Tenant shall, at its sole cost, maintain the interior of the Premises (walls, floors, plumbing fixtures, interior glass, and lighting) in clean, safe condition.

4.02 HVAC. Landlord shall arrange routine preventive maintenance of HVAC systems serving the Premises. Such costs shall be included in CAM Charges. If replacement is required through no fault of Tenant, Landlord may recover the cost through CAM Charges as a Capital Improvement under Section 1.03, amortized over the useful life of the replacement asset.

4.03 Landlord's Obligations. Subject to CAM reimbursement, Landlord shall maintain the structural foundation, load-bearing walls, exterior roof membrane, and Common Areas.

4.04 Alterations. Tenant shall not make Alterations without Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed for non-structural alterations costing less than $10,000.

4.05 Mechanic's Liens and Protection. Tenant shall pay promptly for all labor and materials. Tenant must give Landlord 10 days' written notice before commencing work. Landlord may post notices to protect the property from lien claims. If a lien is filed, Tenant must discharge or bond it within 15 days.

4.06 Surrender and Abandonment. Upon expiration or earlier termination, Tenant shall surrender the Premises broom-clean and in good condition, Normal Wear and Tear and insured casualty excepted, and shall remove all of Tenant's personal property and Trade Fixtures, repairing any damage caused by removal. Permanent Alterations shall remain Landlord's property unless Landlord, at the time consent was given, conditioned its consent on removal. If Tenant fails to remove its personal property or Trade Fixtures by the end of the Term, such items shall be deemed abandoned, and Landlord may remove, store, sell, or dispose of them at Tenant's expense, without liability and without waiving any other remedy. A final walk-through will be conducted and all keys and access devices returned to Landlord.

ARTICLE 5 | UTILITIES

5.01 Direct Utilities. Tenant shall pay directly to the applicable utility provider all charges for utilities separately metered or otherwise attributable to the Premises, as specified in Section 1/3 Lease Terms Sheet (Financial Obligations) (including, by default, electricity, natural gas, telephone, and internet/data service).

5.02 Shared and Common-Area Utilities. Where utilities are not separately metered to the Premises (including, by default, water, sewer, trash, and common-area electricity), Tenant shall pay its Proportionate Share as part of CAM Charges, or as otherwise specified in the Lease Terms Sheet or any applicable Annual Budget.

5.03 Tenant's Obligation to Establish Service. Tenant shall promptly establish and maintain accounts in Tenant's own name for all direct utilities, and shall keep such accounts current throughout the Term. Tenant shall provide Landlord with evidence of active service upon request. Landlord may request separate copies of all direct utility billings.

5.04 Interruptions. Subject to Article 18, Section 18.03 (Utility Interruptions), Landlord shall not be liable for interruptions in utility service except those caused by Landlord's gross negligence or willful misconduct.

ARTICLE 6 | INSURANCE AND INDEMNIFICATION

6.01 Tenant's Required Insurance. Tenant must carry: $1M per occurrence / $2M aggregate Commercial General Liability (CGL); "Special Form" Property Insurance covering 100% of Tenant's property; and Washington State Workers' Compensation coverage as and to the extent required by Applicable Laws for Tenant's employees, if any. If Tenant has no employees, Tenant shall upon request certify that fact to Landlord in writing.

6.02 Additional Insureds. CGL policies must name Landlord and Landlord's lender, if any, as Additional Insureds on a primary/non-contributory basis.

6.03 Mutual Waiver of Subrogation. Landlord and Tenant mutually waive rights of recovery against each other for any loss covered by the required property insurance.

6.04 Waiver of Immunity. Landlord and Tenant each specifically and expressly waive any immunity that each may be granted under the Washington State Industrial Insurance Act, Title 51 RCW. Neither party's indemnity obligations under this Lease shall be limited by any limitation on the amount or type of damages, compensation, or benefits payable to or for any third party under the Worker Compensation Acts, Disability Benefit Acts or other employee benefit acts. LANDLORD AND TENANT ACKNOWLEDGE THAT THE FOREGOING WAIVER WAS SPECIFICALLY AND MUTUALLY NEGOTIATED BY THE PARTIES.

6.05 General Indemnification. Tenant shall indemnify, defend, and hold Landlord harmless from claims, damages, liabilities, and expenses arising from Tenant's use of the Premises or breach of this Lease, except to the extent caused by Landlord's gross negligence or willful misconduct.

ARTICLE 7 | CASUALTY AND CONDEMNATION

7.01 Casualty. If damaged by fire or casualty, Landlord shall estimate repair time. If repairable within 180 days, Landlord shall repair the structure, and Base Rent Tier Two abates in proportion to the area or utility of the Premises that Tenant cannot use until the repair is complete. Base Rent Tier One continues and is reconciled to actual costs under Section 1.06. If not repairable within 180 days, Landlord may terminate. Landlord has no duty to repair Tenant's property.

7.02 Condemnation. If by exercise of eminent domain (i) more than twenty-five percent (25%) of the rentable floor area of the Premises is taken, or (ii) any portion of the parking, access, or Common Areas is taken in a manner that, in Tenant's reasonable judgment, materially impairs Tenant's ability to operate for the Permitted Use, this Lease shall terminate as of the date of the taking. For any lesser taking, this Lease shall continue, with Base Rent Tier Two equitably abated in proportion to the area or utility lost, applying the same rule as Section 7.01. Base Rent Tier One continues and is reconciled to actual costs under Section 1.06, with any change in Proportionate Share resulting from the taking reflected in the next Annual Budget. Landlord shall receive the entire condemnation award; Tenant may make a separate claim against the condemning authority for Tenant's moving expenses, Trade Fixtures, and loss of business goodwill, only to the extent recoverable independently under Applicable Laws.

ARTICLE 8 | ASSIGNMENT AND SUBLETTING

8.01 Consent. Tenant shall not assign this Lease or sublet any portion of the Premises without Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed.

8.02 Recapture. Upon Tenant's request to assign or sublet, Landlord has 30 days to elect to recapture the space and terminate the Lease for that portion.

8.03 Excess Rent. If Tenant subleases for a profit, 50% of the excess rent (after deducting amortized broker and TI costs) shall be paid to Landlord.

ARTICLE 9 | DEFAULT AND REMEDIES

9.01 Events of Default. Tenant defaults under this Lease if it: (a) fails to pay Rent within five (5) days after required notice; (b) fails to perform a non-monetary obligation within fifteen (15) days after notice; (c) abandons the Premises; or (d) becomes insolvent.

9.02 Landlord Default. Landlord shall not be in default unless Landlord fails to perform obligations required of Landlord within thirty (30) days after notice by Tenant to Landlord; provided, however, that if the nature of such default cannot be cured within such thirty (30)-day period, Landlord shall not be in default if Landlord commences such cure within thirty (30) days after notice by Tenant and diligently pursues such cure to completion. If Landlord fails to cure any such default within the allotted time, Tenant's sole remedy shall be to seek actual money damages, but not consequential or punitive damages, for loss arising from Landlord's failure to discharge its obligations under this Lease. Nothing herein shall relieve Landlord from its duty to perform any of its obligations to the standard prescribed in this Lease. Any notice periods granted herein shall run concurrently with, and not in addition to, any default notice periods required by law.

9.03 Remedies. Upon an Event of Default, Landlord may exercise any remedy available under this Lease or applicable law. All remedies are cumulative and non-exclusive.

9.04 Termination of Lease. Landlord may terminate Tenant's interest under the Lease, but no act by Landlord other than notice of termination from Landlord to Tenant shall terminate this Lease. The Lease shall terminate on the date specified in the notice of termination. Upon termination of this Lease, Tenant will remain liable to Landlord for damages in an amount equal to Rent and other sums that would have been owing by Tenant under this Lease for the balance of the Term, less the net proceeds, if any, of any reletting of the Premises by Landlord subsequent to the termination, after deducting all of Landlord's Reletting Expenses (as defined in Section 3/3). Landlord shall be entitled to either collect damages from Tenant monthly on the days on which Rent or other amounts would have been payable under the Lease, or alternatively, Landlord may accelerate Tenant's obligations under the Lease and recover from Tenant: (i) unpaid Rent which had been earned at the time of termination; (ii) the amount by which the unpaid Rent which would have been earned after termination until the time of award exceeds the amount of Rent loss that Tenant proves could reasonably have been avoided; (iii) the amount by which the unpaid Rent for the balance of the term of the Lease after the time of award exceeds the amount of Rent loss that Tenant proves could reasonably be avoided (discounting such amount by the discount rate of the Federal Reserve Bank of San Francisco at the time of the award, plus 1%); and (iv) any other amount necessary to compensate Landlord for all the detriment proximately caused by Tenant's failure to perform its obligations under the Lease, or which in the ordinary course would be likely to result from the Event of Default, including without limitation Reletting Expenses described below.

9.05 Re-Entry and Reletting. Landlord may continue this Lease in full force and effect, and without demand or notice, re-enter and take possession in accordance with applicable law and pursuant to lawful judicial process.

9.06 Waiver of Redemption Rights. Tenant, for itself, and on behalf of any and all persons claiming through or under Tenant, including creditors of all kinds, hereby waives and surrenders all rights and privileges which they may have under any present or future law, to redeem the Premises or to have a continuance of this Lease for the Term, or any extension thereof.

9.07 Nonpayment of Additional Rent. All costs that Tenant is obligated to pay to Landlord pursuant to this Lease shall, in the event of nonpayment, be treated as Additional Rent, and Landlord shall have the same rights with respect to nonpayment of Additional Rent as it has with respect to nonpayment of Rent.

9.08 Failure to Remove Property. If Tenant fails to remove any of its property from the Premises at Landlord's request following an uncured Event of Default, Landlord may, at its option, remove and store the property at Tenant's expense and risk. If Tenant does not pay the storage cost within fifteen (15) days of Landlord's request, Landlord may, at its option, have any or all of such property sold at public or private sale (and Landlord may become a purchaser at such sale), in such manner as Landlord deems proper, after not less than ten (10) days' prior written notice to Tenant and to any secured party that has filed a financing statement covering the property, and otherwise in the manner required by Applicable Laws. Landlord shall apply the proceeds of such sale: (i) to the expense of such sale, including reasonable attorneys' fees actually incurred; (ii) to the payment of the costs or charges for storing such property; (iii) to the payment of any other sums of money which may then be or thereafter become due Landlord from Tenant under any of the terms hereof; and (iv) the balance, if any, to Tenant. Nothing in this Section shall limit Landlord's right to sell Tenant's personal property as permitted by law or to foreclose Landlord's lien for unpaid Rent, if any.

ARTICLE 10 | SUBORDINATION, ATTORNMENT, AND ESTOPPEL CERTIFICATES

10.01 Subordination. This Lease is subordinate to any current or future mortgage or ground lease. Tenant shall attorn any successor-in-interest upon foreclosure.

10.02 Estoppel Certificates. Within ten (10) business days after written request from Landlord, Tenant shall execute, acknowledge, and deliver to Landlord (or any prospective purchaser, lender or person or entity Landlord designates) a written estoppel certificate certifying, to the extent true, each of the following: (a) that this Lease is unmodified and in full force and effect (or, if modified, stating the modifications); (b) the Lease Start Date, Rent Commencement Date, and Lease Expiration Date; (c) the amount of Base Rent Tier One charges and the date through which each has been paid; (d) the amount of any Security Deposit held by Landlord; (e) that, to Tenant's knowledge, neither party is in default (or specifying any claimed default); (f) that Tenant has accepted and is in possession of the Premises; (g) that there are no uncured Landlord obligations or unapplied concessions, free-rent periods, or allowances (or specifying any); (h) that Tenant has no current offsets, defenses, or claims against Base Rent Tier One, or Base Rent Tier Two, or Additional Rent (or specifying any); and (i) such other factual matters as Landlord, its lender, or a prospective purchaser may reasonably request. Tenant's failure to timely deliver the certificate shall be conclusive that the facts stated in Landlord's proposed form are correct.

ARTICLE 11 | LANDLORD'S RIGHT OF ENTRY

11.01 Landlord may enter upon 24 hours' notice for inspections, repairs, or to show the space. In emergencies, Landlord may enter without notice.

ARTICLE 12 | RELOCATION OF TENANT

12.01 Landlord may, upon sixty (60) days' notice, relocate Tenant to another suite within the same Building or parcel featuring substantially similar square footage, equivalent visibility, parking, utility capacity, and frontage. Landlord shall pay reasonable out-of-pocket moving and rewiring costs.

ARTICLE 13 | HOLDING OVER

13.01 If Tenant remains in possession after expiration or termination of this Lease without Landlord's written consent, Tenant shall be a holdover tenant at sufferance. Base Rent shall increase to 150% of the rate in effect immediately before expiration during the first thirty (30) days and 200% thereafter. Additional Rent shall continue unchanged. Landlord's acceptance of holdover rent does not create a month-to-month tenancy unless a separate written agreement is signed, and the holdover tenancy at sufferance may be terminated pursuant to Washington law.

ARTICLE 14 | BROKERS AND AGENCY

14.01 Broker representations, warranties, and indemnities are set forth in Section 17.03 (No Brokers (Other Than Disclosed)), which applies to both parties.

ARTICLE 15 | NOTICES

15.01 Delivery. Legal notices must be in writing and sent to the addresses set forth in Section 1/3 Specific Lease Terms (Notice Addresses), via Personal Delivery, Overnight Courier, or Certified Mail. Notwithstanding anything herein, any notice required under Chapter 59.12 RCW shall be served strictly in the manner required by Washington law (including RCW 59.12.040). Email is invalid for legal default notices.

ARTICLE 16 | DISPUTE RESOLUTION AND WAIVER OF JURY TRIAL

16.01 Venue and Fees. Governed by Washington law. Venue is King County. Prevailing party recovers attorney fees.

16.02 Waiver of Jury Trial. TO THE MAXIMUM EXTENT PERMITTED, LANDLORD AND TENANT KNOWINGLY, VOLUNTARILY, AND INTENTIONALLY WAIVE ANY RIGHT TO TRIAL BY JURY IN ANY CIVIL ACTION, PROCEEDING, OR COUNTERCLAIM (INCLUDING UNLAWFUL DETAINER ACTIONS) BROUGHT BY EITHER PARTY AGAINST THE OTHER ON ANY MATTER ARISING OUT OF THIS LEASE.

ARTICLE 17 | REPRESENTATIONS AND WARRANTIES

17.01 Authority to Execute. Each signatory represents and warrants that they have full corporate, partnership, limited liability company, or other organizational authority to execute this Lease on behalf of the party indicated; that all necessary internal authorizations have been obtained; and that the entity executing this Lease is duly organized, validly existing, and in good standing under the laws of its state of formation and qualified to do business in the State of Washington.

17.02 OFAC and Anti-Money-Laundering Compliance. Each party represents and warrants that it, its principals, and its beneficial owners are not (a) listed on the Specially Designated Nationals and Blocked Persons List maintained by the U.S. Office of Foreign Assets Control (OFAC) or on any similar list maintained by any U.S. government agency; (b) a person with whom U.S. persons are restricted from doing business under the USA PATRIOT Act, Executive Order 13224, or any other U.S. anti-terrorism or anti-money-laundering law; or (c) otherwise subject to U.S. sanctions. Each party shall promptly notify the other if this representation becomes untrue at any time during the Term.

17.03 No Brokers (Other Than Disclosed). Each party represents that it has not engaged any broker, finder, or agent in connection with this Lease other than those disclosed in Section 1/3 Specific Lease Terms, and each party indemnifies the other against any claim by an undisclosed broker arising from its own conduct.

17.04 Accuracy of Application Information. Tenant represents that all financial statements, credit information, and other materials submitted in connection with the application and Lease execution are true and complete in all material respects as of the date submitted.

ARTICLE 18 | MISCELLANEOUS PROVISIONS

18.01 Security Deposit. Except as required by Applicable Laws, security deposits held by Landlord need not be held in a trust account or bear interest, may be merged with other funds, and may be credited against defaults. Tenant shall replenish any credited amount within ten (10) days after demand, and any remaining balance shall be returned within thirty (30) days after surrender.

18.02 Limitation of Liability (Non-Recourse). Landlord's liability is limited to its interest in the Property. No member, manager, shareholder, officer, director, trustee, or beneficiary of Landlord shall have personal liability under this Lease. Landlord shall not be liable for consequential, special, or lost-profit damages.

18.03 Utility Interruptions. Landlord is not liable for infrastructure or utility outages, nor do they constitute eviction.

18.04 Quiet Enjoyment. Provided Tenant performs all obligations, Tenant may peaceably enjoy the Premises.

18.05 Severability and Force Majeure. Invalid provisions are severed. Delays in performance caused by acts of God, fire, flood, earthquake, pandemic or epidemic, war, terrorism, civil disturbance, government orders or shutdowns, labor disputes or strikes, supply chain disruptions, or other causes beyond the reasonable control of the affected party shall extend the time for that party's performance by the duration of the delay; provided, however, that Tenant's obligation to timely pay Rent shall not be excused or delayed by any such event, except as expressly provided elsewhere in this Lease.

18.06 No Partnership or Joint Venture. Nothing contained in this Lease shall be deemed or construed to create a partnership, joint venture, agency, employment, or any other relationship between Landlord and Tenant other than that of landlord and tenant.

18.07 Counterparts and Electronic Signatures. This Lease may be executed in one or more counterparts, each of which shall be deemed original, and all of which together shall constitute one and the same instrument. Signatures transmitted by facsimile, email (PDF), or executed via a recognized electronic signature platform (e.g., DocuSign, Adobe Sign) shall have the same force and effect as original ink signatures, except where Washington law requires original signatures (such as notarized instruments).

18.08 Confidentiality. Each party agrees to keep confidential the financial and economic terms of this Lease and any non-public information disclosed in connection herewith, except as required by law, court order, or regulatory request, and except as reasonably necessary for disclosure to lenders, prospective lenders, prospective purchasers or assignees, attorneys, accountants, insurers, or other professional advisors who are themselves bound by similar confidentiality obligations.

18.09 No Recording; Memorandum of Lease. Tenant shall not record this Lease, or any memorandum, affidavit, or other document referencing this Lease, in the real property records of any jurisdiction without Landlord's prior written consent. Any recording in violation of this provision shall constitute a material default and shall be removable by Landlord at Tenant's sole cost.

18.10 Entire Agreement; Amendments. This Lease, including Sections 1/3, 2/3, and 3/3 and all exhibits and addenda, constitutes the entire agreement between the parties and supersedes all prior negotiations, discussions, and letters of intent. Any amendment must be in a written instrument signed by the parties, except as expressly provided herein.

18.11 Successors and Assigns. This Lease shall be binding upon and inure to the benefit of the parties and their respective heirs, executors, administrators, successors, and assigns.

18.12 Headings. Article and section headings are for convenience only and shall not affect the interpretation of this Lease.

18.13 Submission Not an Offer. The submission of this Lease or any summary of terms by Landlord to Tenant for review or signature does not constitute an offer to lease, a reservation of, or an option for the Premises. This Lease becomes effective and binding only upon full execution and delivery by both Landlord and Tenant.

18.14 No Light, Air, or View Easement. No diminution or shutting off of light, air, or view by any structure that may be erected on lands adjacent to the Building or Premises shall affect this Lease, abate Rent, or impose any liability on Landlord. Tenant is granted no easement for light, air, or view.

18.15 Approximate Measurements. All square footage, dimensions, and Proportionate Share figures stated in this Lease are approximate, are mutually agreed and conclusive for all purposes of this Lease and shall not be subject to remeasurement. No variance between any stated figure and the actual measurement of the Premises or the Building shall change the Rent, the Proportionate Share, or any other obligation under this Lease, or give rise to any claim, offset, or adjustment by either party.

ARTICLE 19 | SITE RULES AND REGULATIONS

19.01 Sidewalks and corridors must remain unobstructed.

19.02 Plumbing fixtures shall not be misused (no grease or caustic chemicals).

19.03 Trash must be stored inside until moved to dumpsters. Cardboard must be broken down.

19.04 No objectionable odors or loud noises may emanate from the space.

19.05 Deliveries must not block main entrances or parking.

19.06 No animals permitted without Landlord consent, except service animals as defined by Applicable Laws. (No certification beyond law is required.)

19.07 Smoking and vaping are strictly prohibited inside and within twenty-five (25) feet of entrances or windows under RCW 70.160.

ARTICLE 20 | SIGNAGE AND PARKING

20.01 Signage. No exterior signs or window decals without Landlord's written consent and required municipal permits. Tenants must remove signs and repair fascia upon vacating.

20.02 Parking. Tenants and employees must park in designated employee areas. No vehicle storage over twenty-four (24) hours is permitted without Landlord's prior written consent. Landlord reserves the right to tow violators.

End of Section 2/3 – Standard Lease Terms

SECTION 3/3 – DEFINITIONS & GLOSSARY TERMS

TWO-TIER VALUE-SHARING LEASE©

Version 2.1, September 19, 2026

> *This Section 3/3 defines the capitalized terms used throughout the Two-Tier Value-Sharing Lease©, including Section 1/3 (Specific Lease Terms), Section 2/3 (Standard Lease Terms), and Section 3/3 (Definitions & Glossary Terms). Landlord may revise Sections 2/3 and 3/3 from time to time. The revision of Sections 2/3 and 3/3 identified in Tenant's executed Section 1/3 governs this Lease, and a later revision applies to this Lease only if Tenant approves it in writing.*

1.01 2T-VSL means a Two-Tier Value-Sharing Lease©. Base Rent Tier One covers the costs of operating, managing, and maintaining the Property. Base Rent Tier Two compensates Landlord for its investment and assumed risk. Together, Tier One and Tier Two constitute Base Rent.

1.02 Additional Rent. Any amounts payable by Tenant under the Lease other than Base Rent, including reimbursements, CAM adjustments, interest, late charges, legal fees recoverable under the Lease, indemnity obligations, and other charges expressly designated as Additional Rent

1.03 Alterations. Any physical additions, improvement, modification, installation, or alteration to the Premises by the Tenant after the Lease Start Date.

1.04 Applicable Laws. All present and future federal, state, county, and municipal laws, ordinances, regulations, and building codes applicable to the Property or Tenants, including all applicable laws, ordinances, regulations, codes, permits and governmental requirements now existing or hereafter enacted.

1.05 Base Rent: Tier-One: Operational Costs. The annually fixed, minimum monthly amount Tenant must pay into the Escrow Account for the right to occupy the Premises and Grounds, including but not limited to Tenant share of all CAM Charges, general and special utilities, management fees, equipment reserve fees, and a contingency percentage based on the projected Annual Budget distributed prior to the end of each year. Late charges, interest, and default-related fees shall constitute Additional Rent and not Base Rent.

1.06 Base Rent: Tier-Two: Landlord Investment. The fixed or percentage minimum monthly amount Tenant is required to pay to Landlord, at the account Landlord designates under Section 1.01 of Section 2/3, for the right to occupy the Premises, excluding all Base Rent Tier-One Operational Costs.

1.07 Building. The entire physical structure and underlying real property in which the Premises are located, including the roof, foundation, exterior walls, and shared utility systems.

1.08 Building Total Rentable Square Footage. The total rentable square footage of the Building as stated in Section 1/3 – Specific Lease Terms or, if not stated there, as reasonably determined by Landlord. It is the denominator used to compute Proportionate Share.

1.09 CAM Charges (Common Area Maintenance). The costs and expenses incurred by the Landlord to operate, repair, maintain, and manage the Building and the Common Areas. These are allocated on the basis of each Tenant's Proportionate Share as reasonably determined by Landlord.

1.10 Common Areas. All areas and facilities outside the Premises that are provided and designated by Landlord for the general, non-exclusive use of Landlord, Tenant, other tenants of the buildings, and their respective employees and invitees. This includes parking lots, landscaped areas, sidewalks, exterior lighting, driveways, and shared trash enclosures.

1.11 Escrow Account. A separate account designated by Landlord into which Tenant pays Base Rent Tier One and from which Landlord pays the Operational Costs included in Base Rent Tier One. The Escrow Account is estimated, funded, and reconciled as provided in Section 1.06 of Section 2/3. Any different terms for the Escrow Account stated in Section 1/3 – Specific Lease Terms control.

1.12 Event of Default. Any failure or event described in Section 9.01 of Section 2/3 that continues after the notice and cure period, if any, provided there. An Event of Default entitles Landlord to exercise the remedies available under this Lease and applicable law.

1.13 Good Faith Deposit. The initial, refundable sum of money submitted by a prospective tenant with its letter of intent or lease application as consideration for Landlord's evaluation, underwriting, lease preparation, and temporary reservation of the Premises.

1.14 Guarantor. The individual person (or persons) who signs the Unconditional Guaranty of Lease, making them personally and financially responsible for the Tenant's (the business entity) obligations, debts, and performance under the Lease.

1.15 Hazardous Materials. Any substance, chemical, waste, or material defined as toxic, explosive, corrosive, flammable, or hazardous by any federal, state, or local law, rule, or regulation, including the Washington Model Toxics Control Act (MTCA) and CERCLA.

1.16 Lease Expiration Date. The specific date on which the Term of the Lease naturally concludes, and the Tenant must surrender the Premises back to the Landlord.

1.17 Lease Start Date. The date stated as the Lease Start Date in Section 1/3 – Specific Lease Terms, on which the Term begins and Tenant's right to possession of the Premises commences. The Lease Start Date may precede the Rent Commencement Date to permit Tenant Improvements, fixturing, inspections, setup, or other approved pre-opening activities.

1.18 Lease Terms Sheet. The tenant-specific portion of the Lease set forth in Section 1/3, including all exhibits, addenda, guaranties, work letters, and other attachments. Section 1/3 governs Sections 2/3 and 3/3 in the event of a conflict.

1.19 NNN Lease (Triple Net Lease). A lease structure, applicable only where Section 1/3 – Specific Lease Terms so elects, under which Tenant pays real property taxes, insurance premiums, and maintenance costs for the Premises directly to the taxing authority, insurer, or vendor, in place of and

not in addition to the corresponding CAM Charges that would otherwise be included in Base Rent Tier One. Where elected, the provisions stated for that purpose in Section 1/3 – Specific Lease Terms apply, as provided in Section 1.05 of Section 2/3.

1.20 Normal Wear and Tear. The expected minor deterioration that occurs to the Premises simply from the day-to-day, reasonable use of the space over the Term (e.g., minor scuffs on the floor, slight fading of paint). It expressly does not include damages caused by negligence, heavy impact, lack of maintenance, or the removal of Trade Fixtures.

1.21 Permitted Use. The strictly defined, specific business activity that the Tenant is allowed to conduct within the Premises, as written in the Section 1/3 – Specific Lease Terms.

1.22 Premises. The specific, exclusive physical footprint of space leased to Tenant, usually defined by a suite number, address, or floor plan attached to Section 1/3 – Specific Lease Terms. All square footage figures stated for the Premises are approximate, as determined by Landlord.

1.23 Proportionate Share. The percentage of the Building Total Rentable Square Footage assigned to the Premises, as stated in Section 1/3 – Specific Lease Terms. It is used to calculate Tenant's portion of the Base Rent Tier One charges. Stated Proportionate Share percentages are based on approximate measurements and are conclusive for all purposes of this Lease as determined by Landlord.

1.24 Reletting Expenses. The costs Landlord reasonably incurs to relet the Premises following an Event of Default, including brokerage commissions, advertising, reasonable attorneys' fees, and the cost of repairs, alterations, and tenant improvements reasonably required to relet the Premises.

1.25 Rent. Rent means Base Rent Tier One, Base Rent Tier Two, and Additional Rent.

1.26 Rent Commencement Date. The specific date on which the Tenant's obligation to pay applicable Rent first accrues.

1.27 Security Deposit. A sum of money paid by Tenant to Landlord upon execution of the Lease and held by Landlord throughout the Term as security for Tenant's performance. Landlord may apply it to damage to the Premises, unpaid Rent, or other defaults by Tenant, and shall hold, apply, and return it as provided in Section 18.01 of Section 2/3. This amount may be commingled with other Landlord funds.

1.28 Tenant and Subtenant. The Tenant is the person or business that rents or leases property directly from the property owner (Landlord) and has a legal agreement with the Landlord and is responsible for paying rent and following the lease terms. A Subtenant is the person or business that rents all or part of the leased property from the tenant, rather than directly from the Landlord. This arrangement is called a sublease. The original tenant remains responsible to the landlord for complying with the original lease.

1.29 Tenant Improvements (TIs). The initial construction, build-out, or remodeling work required to prepare the "As-Is" space for the Tenant's specific business operations prior to opening.

1.30 Term. The total duration of the Lease Agreement, measured from the Lease Start Date to the Lease Expiration Date (including Options).

1.31 Trade Fixtures. Items of personal property or equipment installed by the Tenant specifically for the conduct of their business (e.g., commercial espresso machines, specialized retail shelving, portable point-of-sale systems). Unlike Alterations, Trade Fixtures remain the property of the Tenant and

must be removed at the expiration of the Lease, provided Tenant repairs any damage caused by their removal.

1.32 Utilities. The basic services delivered to the Premises or the Building for use by Tenant or in connection with the operation of the Premises. Utilities generally include garbage/dumpster service, gas, electricity, internet, pest control, recycling, sewer, and waste connections. Any additional services, exceptions, exclusions, or different allocations of responsibility between Landlord and Tenant shall be set forth in Section 1/3 – Specific Lease Terms or an applicable amendment, when identified, which shall control.

End of Section 3/3 – Definitions & Glossary Terms